

Guardianship Tentative Rulings
September 16, 2024
8:30 a.m.
Department 42

NOTICE TO ALL GUARDIANS AND PETITIONERS: Phone appearances are highly recommended. Additionally, the Court's Self Help Center is available by phone and email to assist Guardians and Petitioners. The Self Help Center does not provide assistance with Guardianships of the Estate. Please see the Court's website for updated information and contact information for the Court's Self Help Center.

Appearances will be by telephone through WebEx unless otherwise specifically ordered by the court. To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 between 8:20 – 8:30 a.m.

The access code is 1464798527

There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. please mute your telephone until your case is called;
2. please do not place the call on hold;
3. minimize all background noise during your call;
4. please identify yourself, each time, prior to speaking with the court;
5. disconnect when the court has completed your case or cases;
6. the court prohibits the recording of these proceedings.

GUARDIANSHIP OF LEWIS ANDERSON CARTER

Case Number: 23PG-0031960

This matter is on calendar for further proceedings regarding Annual Review. The annual Confidential Guardianship Status Report has not been submitted. **The Guardian is ORDERED to appear at today's hearing and submit the Annual Status Report at the time of the hearing. Failure to do so may result in the issuance of an Order to Show Cause why Monetary Sanctions in the amount of \$250.00 should not be ordered for violating the Court's order to appear and to file the report.**

GUARDIANSHIP OF JASON BELZER

Case Number: CVPG12-0027284

This matter is on calendar for Annual Review. The annual Confidential Guardianship Status Report has not been submitted. **The Guardian is ORDERED to appear at today's hearing and submit the Annual Status Report at the time of the hearing. Failure to do so may result in the issuance of an Order to Show Cause why Monetary Sanctions in the amount of \$250.00 should not be ordered for violating the Court's order to appear and to file the report.**

GUARDIANSHIP OF AYDAIN FRANCISCO

Case Number: 24PG-0032483

This matter is on calendar for further proceedings on a Petition for Appointment of Guardian of the Person. Letters of Temporary Guardianship issued on June 5, 2024, and are set to expire today unless further extended.

The father, sibling and paternal grandmother were timely served for a prior hearing. The mother has signed a consent to appointment of the proposed Guardian and waived notice. The Court previously dispensed with notice to the paternal and maternal grandfather. The maternal grandmother has been timely served for today's hearing. The matter has been properly noticed. Counsel has been appointed for the minor and has confirmed appointment. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage. The father has filed an objection to the Petition. The paternal grandmother has filed a declaration agreeing with the objection. The Court finds that the declaration is also an objection by the paternal grandmother. The Court Investigator's Report filed June 27, 2024 does not include a recommendation but defers to the Court's discretion. **An appearance is necessary on today's calendar to set this matter for a contested hearing.**

GUARDIANSHIP OF DAVIS FRUITS

Case Number: CVPG17-0029160

This matter is on calendar for an Order to Show Cause Re: Termination issued to the Guardian for her failure to appear at the previous hearings on June 3, 2024 and July 22, 2024, and for her failure to file the required Confidential Guardianship Status Report. The matter is also on calendar for further proceedings on the Annual Review. No response to the Order to Show Cause has been submitted. No Confidential Guardianship Status Report has been submitted. **An appearance is necessary on today's calendar to discuss the status of the Guardianship. The Guardians may**

appear by telephone. Warning: Failure to appear on today's calendar will result in the termination of the Guardianship and referral of this matter to Children's Services.

GUARDIANSHIP OF AARON, JONATHAN, JEMMA & PAUL HANSEN

Case Number: CVPG22-0031442

This matter is on calendar for further proceedings on a Petition for Appointment of Guardian of the Estate of minors Aaron, Jonathan, Jemma and Paul Hansen. The Petition was filed by the minor's paternal grandfather, Arnold Hansen. Mr. Hansen is already the Current Guardian of the Person for each of the four minors.

The Court previously dispensed with notice to the deceased parents and found that the minors and siblings had been timely served. The maternal grandparents and paternal grandmother were served with a Notice of Hearing for today's date, but it is defective. These individuals were required to be served at least fifteen days prior to today's hearing date. The proof of service shows they were served only thirteen days prior to today's hearing date. The Court therefore still requires proof of service of the Notice of Hearing for the maternal grandparents and paternal grandmother. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The grandparents may be served by mail. Prob. Code § 1511(c). The Court has reviewed the Court Investigator's report, filed April 17, 2024, which recommends granting the Petition.

This matter is continued to **Monday, October 28, 2024, at 8:30 a.m. in Department 42** for further proceedings on the Petition. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF BRYXLY HELLER

Case Number: 24PG-0032488

This matter is on calendar for hearing on a Petition for Appointment of Guardian filed by Denise Gerling, the paternal grandmother. The Petition has not been served on any of the individuals entitled to notice. The matter is also on calendar for status of stay. The Court notes that there is a separately pending proceeding which stays this matter. This matter is continued to **Monday, February 10, 2025, at 8:30 a.m. in Department 42** for further proceedings on the Petition and for Status of Stay. **No appearance is necessary on today's calendar.**

GUARDIANSHIP OF JEFFREY JONES

Case Number: 24PG-0032498

This matter is on calendar for further proceedings on a Petition for Appointment of Guardian of the Person of minor, Jeffrey Jones. The Petition was filed by the minor's paternal grandmother,

Wanda Anderson. Temporary Guardianship Letters issued on July 26, 2024. The Temporary Guardianship's powers are set to expire today unless further extended.

The father has nominated the Petitioner but has not consented to the appointment nor waived notice. The mother and father were personally served for a prior hearing date. The Court previously dispensed with notice to the deceased maternal grandfather. The paternal grandfather, maternal grandmother, and siblings have been timely served. There is no proof of service on the minor. The minor must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). The Court has reviewed the Court Investigator's report, filed July 9, 2024, which recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage.

This matter is continued to **Monday, October 14, 2024, at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Temporary Orders shall be extended to the next hearing date. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF IZABELLE KAISER-DEANDA

Case Number: 24PG-0032534

This matter is on calendar for further proceedings on a Petition for Appointment of Guardian of the Person of minor, Isabelle Kaiser-Deanda. The Petition was filed by non-relative Kati Kaizen. Letters of Temporary Guardianship issued on July 5, 2024. The Temporary Guardianship's powers are set to expire today unless further extended.

The father has been personally served. A proof of service has been filed reflecting service on Diane Kaiser, Alta Garcia DeAnda and Savvanah Herr; however, their relationship to the minor is unknown. The Petition also fails to identify the names and addresses of the grandparents. The Court requires service on the mother, grandparents and any siblings. The Court does not require service on any parent whose parental rights have been terminated. If there has been an adoption, the adoptive parents/grandparents are the ones entitled to notice. Insufficient information has been provided to permit the Court to dispense with notice to any party at this time. The mother must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1. The Children's Service Report filed on August 6, 2024 recommends the Court deny the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage.

This matter is continued to **Monday, November 18, 2024, at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioner shall file a supplemental declaration which provides the identity and address of the grandparents. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF LUCAS KELLY & LILLY IMEL

Case Number: 23PG-0032044

This matter is on calendar for status of visitation. The Guardian and mother were previously able to reach a visitation arrangement. **An appearance is necessary on today's calendar to discuss visitation and, if appropriate, to make any modifications to the visitation arrangement.**

GUARDIANSHIP OF TAYLOR KLIEN

Case Number: 24PG-0032527

This matter is on calendar for further proceedings on a Petition for Appointment of Guardian of the Person of minor, Taylor Klein. The Petition was filed by the minor's step-grandmother Robin Mair. Temporary Guardianship issued on July 5, 2024. The Temporary Guardianship's powers are set to expire today unless further extended.

The Court previously dispensed with notice to the deceased paternal grandfather. The maternal grandmother, paternal grandmother and siblings Scottie and Alexis have been timely served. A proof of service has been filed related to Dwayne Mills but his relationship to the minor is unknown. The parents have been served by mail; however, personal service was required. There is no proof of service for the minor, maternal grandfather and sibling Dominc. The minor, parents, maternal grandfather and sibling Dominc must be served before the Court can proceed on the Petition. Insufficient information has been provided to permit the Court to dispense with notice to these parties. Prob. Code § 1511(b). The parents must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). The Court Investigator's report recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage.

This matter is continued to **Monday, November 18, 2024, at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will

require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. The clerk is instructed to mail a copy of today's minute order to the Petitioner. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF SHYLENE LANGSTAFF

Case Number: 24PG-0032333

This matter is on calendar for further proceedings on a Petition for Termination filed by the minor Shylene Langstaff. The minor, paternal grandmother and guardian consent to the termination. The Court dispenses with notice to the deceased parents, the unknown maternal grandparents, the unknown paternal grandfather and the sibling whose address is unknown. The Court Investigator Report recommends the Court deny the Petition as a Successor Petition has been filed by Jayson Langstaff and Rachel Langstaff (paternal uncle and aunt).

This matter is also on calendar for hearing on a Petition for Appointment of Successor Guardian of the Person of minor, Shylene Langstaff. The Petition was filed by the minor's paternal uncle and aunt, Jayson and Rachel Langstaff. The Current Guardian is Kelly Langstaff. Temporary orders have not issued.

The Court dispenses with notice to the deceased parents, unknown maternal grandparents and sibling whose address is unknown. The paternal grandfather has served by mail. The Current Guardian and paternal grandmother consent to the appointment and waive notice. The minor has consented to the appointment by signing the Petition. The matter has been properly noticed. No objections have been raised. The paperwork appears to be in order. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage.

The Court has reviewed and considered the Court Investigator's Report filed August 26, 2024 and agrees with the recommendation to grant the Petition. The Court **FINDS** it would be detrimental for the child to be with either parent or any parent objecting to the guardianship, the guardianship is in the child's best interest, and the guardianship is necessary and convenient. The proposed guardian is suitable.

The Court **GRANTS** the Petition for Appointment of Successor Guardian. Visitation shall be at the Guardian's discretion. A proposed Order Appointing Guardian has been lodged and will be executed by the Court. Annual Review is set for **Monday, September 22, 2025, at 8:30 a.m. in Department 42.** The April 7, 2024 hearing date for Annual Review is VACATED. The Petition for Termination is **DENIED**. **No appearance is necessary on today's calendar.**

GUARDIANSHIP OF BILLY LESTER

Case Number: CVPG19-0029995

This matter is on calendar for further proceeding regarding status of Guardianship in Texas. The Court was previously informed that the minor was residing in Texas and that the Guardian was

working on establishing a Guardianship in Texas. **An appearance is necessary on today's calendar to discuss the status of the Guardianship in Texas.**

GUARDIANSHIP OF MARYELLA MCCOID

Case Number: CVPG15-0028416

This matter is on calendar for further proceedings on an Order to Show Cause Re: Termination issued to the Guardians for their failure to appear at the previous hearings on February 26, 2024 and April 29, 2024, and for their failure to file the required Accounting with the Court. The matter is also on calendar for further proceedings to confirm filing of the Accounting. No response to the Order to Show Cause has been submitted. No Accounting has been submitted. The Court has significant concerns in that the initial investigative report of October 2015 indicated that the minor's anticipated income exceeded \$53,000 a year which proceeds were to be placed into a 529 college fund. A bond was required in the amount of \$59,250 at that time. No accounting or status of bond has been provided to the Court since 2015. The Guardian appeared at the prior hearing on June 10, 2024, and the need for an accounting was addressed with the Guardian at that time. The matter was continued to today but nothing new has been filed. **An appearance is necessary on today's calendar to discuss the status of the Accounting. The Guardians may appear by telephone. Warning: Failure to appear on today's calendar will result in the termination of the Guardianship and referral of this matter to Children's Services for investigation.**

GUARDIANSHIP OF MARYELLA MCCOID

Case Number: CVPG15-0028458

This matter is on calendar for further proceedings on an Order to Show Cause Re: Termination issued to the Guardians for their failure to appear at the previous hearings on February 26, 2024 and April 29, 2024, and for their failure to file the Confidential Guardianship Status Report. The matter is also on calendar for further proceedings on Annual Review. No response to the Order to Show Cause has been submitted. No Confidential Guardianship Status Report has been filed. The Guardian appeared at the prior hearing on June 10, 2024, and she was ordered to file the Confidential Guardianship Status Report at least 10 days prior to today's hearing. Despite this order, no Confidential Guardianship Status Report has been filed. **An appearance is necessary on today's calendar to discuss the status of the Guardianship. The Guardians may appear by telephone. Warning: Failure to appear on today's calendar will result in the termination of the Guardianship and referral of this matter to Children's Services.**

GUARDIANSHIP OF ANNIE MONTSDEOCA

Case Number: 24PG-0032490

This matter is on calendar for hearing on a Petition to Fix Residence Outside the State of California. This matter has not been properly noticed. The proof of service is incomplete. Item 2 of the proof of service is blank. Further, the date of the signer is incorrect. The Court requires timely service on the parents before it can proceed on the Petition. The parents can be served by mail. This matter is continued to **Monday, October 28, 2024, at 8:30 a.m. in Department 42** for further proceedings on the Petition to Fix Residence Outside the State of California. Petitioner shall file and timely serve a new Notice of Hearing of the continued hearing date. **No appearance is necessary on today's calendar.**

GUARDIANSHIP OF ALIVIA MOORE

Case Number: 24PG-0032435

This matter is on calendar for further proceedings on a Petition for Appointment of Guardian of the Person of minor, Alivia Moore. The Petition was filed by the minor's paternal grandmother, Maria Souza. Temporary orders were requested but denied by the Court.

The father and paternal grandfather consent to the appointment. The Court previously dispensed with notice to the deceased maternal grandfather. The mother and maternal grandmother were timely served for the prior hearing. There is no proof of service of the Notice of Hearing for the siblings. Insufficient information has been provided to permit the Court to dispense with notice to these parties. Siblings can be served by mail. Prob. Code § 1511(c). For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1. The Court has reviewed the Court Investigator's report, filed May 22, 2024, which recommends the Court deny the Petition. The mother has filed an objection. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage.

The Public Defender has been appointed as counsel for the minor. **An appearance is necessary by the Public Defender to confirm appointment.**

As for the underlying Petition for Appointment, that matter is continued to **Monday, November 4, 2024, at 8:30 a.m. in Department 42** for further proceedings on the Petition. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. The clerk is instructed to prepare a separate order appointing the Public Defender. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar except by the Public Defender to confirm appointment as noted above.**

GUARDIANSHIP OF GABRIEL PEREA AND YESENIA PERIA-JACKSON

Case Number: CVPG17-0029200

This matter is on calendar for hearing on a Petition for Termination of Guardianship filed by the minors' mother, Leticia Perea. The Guardian is the maternal grandmother, Margarita Ingram.

The maternal grandmother/Guardian has been personally served. Proof of Service as to the maternal grandfather, Gabriel's father and paternal grandparents, Yesenia's father and paternal grandmother has been filed, however, it is invalid as Item 2 (address of person serving) and Item 4 (date and place mailed from) were left blank. Petitioner shall file an Amended Proof of Service that contains the necessary information. The Court finds that service on the siblings is satisfied as they live with the mother. There is no proof of service for Yesenia's paternal grandfather who

the mother states is in prison. Service is still required on Yesenia's paternal grandfather and service can be accomplished by mail. Probate Code § 1460.

The Court has reviewed the Court's Investigator's Report filed on September 9, 2024 that recommends granting the Petition. The Report also recommends that Gabriel reside with the mother while the Petition for Termination is pending. No Petition for Temporary Guardianship has been filed by the mother. Should the mother file such Petition, the Court will consider the Petition. The Court notes that the Guardian has filed an Objection. The Public Defender is appointed to represent the minors.

This matter is continued to **Monday, October 14, 2024, at 8:30 a.m. in Department 42** for further proceedings on the Petition and confirmation of counsel. Petitioner is ordered to file and serve a new Notice of Hearing with the continued hearing date on Yesenia's paternal grandfather. In the alternative, if Petitioner cannot serve Yesenia's paternal grandfather, the Court will require a declaration explaining why he cannot be served and the efforts of Petitioner to locate and serve him in order to permit the Court to dispense with notice to Yesenia's paternal grandfather. Petitioner is also ordered to file an Amended Proof of Service as noted above. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF IVAN ROBERTS

Case Number: 23PG-0032043

This matter is on calendar for status of the mother's visitation. The Guardian and the Mother were previously able to reach a visitation arrangement. **An appearance is necessary on today's calendar to discuss the visitation and, if appropriate, make any modifications to the visitation arrangement.**

GUARDIANSHIP OF LYRIC SCHNEIBLE

Case Number: CVPG20-0030754

This matter is on calendar for further proceedings on a Petition for Modification of Grandparent Visitation. The Court notes that there have been no orders related to grandparent visitation issued in this case for the court to modify. Additionally, the present Petition states it is being brought under the Family Code and would appear to more appropriately brought in another type of proceeding. The Court notes that there is a separately pending confidential matter that stays this Court's authority pursuant to Family Code Section 7807. The Court has no jurisdiction to act while the matter is stayed. The hearing is continued to **Monday, November 18, 2024, at 8:30 a.m. in Department 42** for further proceedings. **No appearance is necessary on today's calendar.**

GUARDIANSHIP OF ARROW SHOMER

Case Number: 24PG-0032332

This matter is on calendar for further proceedings on a Petition for Appointment of Guardian of the Person of minor, Arrow Shomer. The Petition was filed by the minor's maternal grandmother and her husband, Gayle and Ray Stewart. Letters of Temporary Guardianship issued on February

21, 2024. The Temporary Guardianship's powers are set to expire today unless further extended.

The father consents to the appointment. The paternal grandparents were served by mail for a prior hearing date. The Court dispenses with notice to the deceased maternal grandfather. The mother and sibling have not been served. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The mother must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). The sibling may be served by mail. Prob. Code § 1511(c). For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1.

The Court has reviewed the Court Investigator's report, filed March 7, 2024, which recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage.

This matter is continued to **Monday, November 4, 2024, 2024, at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF ALEXANDRA URBAN

Case Number: CVPG18-0029698

This matter is on calendar for Annual Review. The annual Confidential Guardianship Status Report has not been submitted, however, due to a clerical error it was not mailed to the Guardian until September 4, 2024. The matter is continued to **Monday, October 7, 2024 at 8:30 a.m. in Department 42** for Annual Review. The clerk is directed to mail a copy of today's minutes to the Guardian. **No appearance is necessary on today's calendar.**

GUARDIANSHIP OF CARMEN UTTERBACK

Case Number: CVPG19-0030203

This matter is on calendar for Annual Review. The annual Confidential Guardianship Status Report has not been submitted. **The Guardian is ORDERED to appear at today's hearing and submit the Annual Status Report at the time of the hearing. Failure to do so may result in the issuance of an Order to Show Cause why Monetary Sanctions in the amount of \$250.00 should not be ordered for violating the Court's order to appear and to file the report.**

GUARDIANSHIP OF SAVANNAH, JOHNNY, AND TIMOTHY WELCH

Case Number: 24PG-0032323

This matter is on calendar for further proceedings on a Petition for Appointment of Guardian of the Person of minors, Savannah, Johnny, and Timothy Welch. The Petition was filed by the minors' maternal grandmother, Kelly Jacobs. Temporary orders have not issued.

This matter has been continued three times for service on the maternal grandfather and to identify any Indian Tribe the minors may have affiliation with. Additionally, the Petitioner was ordered three times to file Form ICWA-030 so that the Court could be assured that the Tribe has notice of this matter. Nothing further has been filed since the hearing on April 8, 2024. Notice is required under ICWA. Despite the continuances nothing new has been filed. The Court Investigator's Report filed on March 21, 2024 recommends the Court grant the Petition.

This matter is also on calendar for hearing on an Order to Show Cause Re: Sanctions that issued to Petitioner Kelly Jacobs on August 8, 2024 for failure to appear on August 5, 2024 and failure to file Form ICWA-30.

An appearance is necessary on today's calendar to discuss the status of the service, the ICWA-030 form, and the Order to Show Cause Re: Sanctions. Petitioner may appear by telephone. Warning: Failure to appear on today's calendar will result in the issuance of both monetary sanctions in the sum of \$250.00 and an Order to Show Cause re: Denial of the Petition.